INFO 4940 / 5940
U.S. Copyright Law
Instructor: Mike Priehs

Final Examination
Spring 2025

Instructions

This is an "open book" examination. You may read, watch, or rely on any material you wish, including supporting materials that are relevant, but not necessarily shared or discussed in the course.

The exam will be due on Wednesday, May 14 at 12:00pm Eastern. If you need an extension, please let me know.

You will submit your answers via Canvas. Under "Assignments," you will find a place to submit your final examination.

Please submit your file as a Word document. Please use 12-point, Times New Roman font, double-spaced.

Please cite all your sources. Do your best with style, format, and complete citations, though your grade is not based on perfection in these areas!

The examination consists of two questions. You must answer both. For Question #1, INFO 4940 students should expect to write ~1,000 words and INFO 5940 students should expect to write ~1,500 words. For Question #2, INFO 4940 students should expect to write ~750 words and INFO 5940 students should expect to write ~1,000 words. These are rough expectations, and the quality of your response is more important than the word count.

Your answers will be weighted as follows:

Question #1: 60%
Question #2: 40%

Any questions can be asked via email. I can be reached at mep324@cornell.edu

Question #1

Background:

Creative Lyrics Co. has created an AI system called "LyrikAI" that can write poems and song lyrics. LyrikAI uses a huge collection of existing poems, lyrics, and other literary works to come up with new creations. Creative Lyrics Co. promotes LyrikAI to musicians, poets, and content creators, saying it can produce original and high-quality literary content.

Incident:

Harmony Flynn is a well-known poet who has won several awards and earns a living by publishing, licensing, and selling their poems. One day, Harmony found a website sharing AI-generated poetry and saw a poem that was very similar to one of their unpublished works, called "Whispers of the Forgotten." Harmony discovered that the AI poem, named "Echoes of the Forgotten," was created by LyrikAI. Harmony had only shared this poem with their literary agent and a few close friends. Harmony suspects that their poem might have been included in the dataset used to train LyrikAI without their permission.

Here is Harmony's original poem:

Whispers of the Forgotten *(Harmony Flynn)*

In the early light, where shadows dance, Forgotten whispers thread through the day. Ghosts of laughter, tears long gone, Silent stories of lives remain.

Under the old oak, roots intertwined, Memories linger, held in the heart. A tapestry of moments, both sweet and bitter, In the dance of time, where past meets present.

The breeze carries tales of love and sorrow, Of dreams chased, and paths crossed. In the stillness, a voice gently sings, Of beauty found in the simplest things.

Here is the poem created by LyrikAI:

Echoes of the Forgotten *(LyrikAI)*

In the early light, where shadows play, Forgotten whispers weave through the day. Echoes of laughter, tears long dried, Silent stories of lives reside.

Beneath the ancient oak, roots entwined, Memories linger, in the heart confined. A mosaic of moments, both sweet and bitter, In the dance of time, where past and present meet.

The breeze carries tales of love and loss, Of dreams pursued, and paths crossed. In the stillness, a voice softly sings, Of beauty found in the simplest things.

Additional Factors:

After Harmony spoke out, other poets and songwriters claimed LyrikAI had created works similar to theirs, leading to a class-action lawsuit against Creative Lyrics Co. for copyright infringement. Some authors are from different countries, raising questions about applicable copyright laws and international treaties.

Creative Lyrics Co. explained that it got the dataset used to train LyrikAI from SmartData Consulting, an independent data aggregator. SmartData Consulting says it collected literary works from various online sources, including blogs, literary journals, and social media. They also claim they have the right to collect and distribute these works under a broad license agreement, but the terms are vague and contested.

To complicate things, popular musician Keeya Moloi revealed in an interview that she used LyrikAI to write the lyrics for her new chart-topping song. Harmony Flynn and several other authors believe their works were used to generate the lyrics to Keeya's hit song. They want compensation for the worldwide commercial success of the song.

This case has sparked a public debate on the ethics of AI-generated content, the devaluation of human creativity, and potential exploitation of authors' works, with widespread discussion in media and online.

Legal Issues:

Harmony and other authors believe that Creative Lyrics Co. has infringed on their copyrights by using their works without permission. They argue that the AI-generated poems and lyrics are derivative works of their original creations.

Creative Lyrics Co. argues that using the authors' works in the training dataset falls under fair use, as it was used for transformative purposes to train the AI and not for direct commercial exploitation.

There is a debate about whether the AI-generated poems and lyrics can be considered original works and who holds the copyright—Creative Lyrics Co., the users of LyrikAI, or the AI itself. The validity and scope of the license agreements between SmartData Consulting and the authors are questioned, especially considering the vague terms and contested rights.

The use of AI-generated content in commercially successful works, like Keeya Moloi's song, raises questions about the distribution of profits and the rights of the original authors whose works were used in the training dataset.

(This is a hypothetical scenario, and the names, companies, and poems are fictional.)

Questions to Address:

Write a paper addressing the following questions in two parts:

Part 1: Conduct a case analysis using the concepts and knowledge acquired throughout this semester.

1. Do you think the plaintiffs have a valid claim for copyright infringement against Creative Lyrics Co.? Why or why not?

2. Do you think the plaintiffs have a valid claim for copyright infringement against Keeya Moloi? Why or why not?

3. Given your answers to the first two questions, what advice would you give to Creative Lyrics Co. about their LyrikAI system?

Part 2: Utilize your understanding of copyright law and current AI-related issues and lawsuits to outline your vision for the future intersection of AI and copyright.

4. How does fair use apply in the context of AI training datasets? What factors do you feel should be considered?

5. What legal and ethical considerations should be addressed when using copyrighted works to train AI systems?

6. Who should be recognized as the author of the AI-generated poems and lyrics, and who holds the copyright?

7. How should profits from works created using AI-generated content be distributed?

8. With so many unsettled copyright cases, share your predictions or thoughts on how AI and copyright may impact one another.

INFO 4940 students: Your answer should be ~1,000 words.
INFO 5940 students: Your answer should be ~1,500 words.

*(**Reminder**: There is not necessarily a correct answer to these questions. You should provide your opinion, but support it with copyright law, statute, case law, etc. Worry less about being "right," and more about making a strong argument!)*

Question #2

Select one of the following issues in copyright law:

- the idea/expression distinction
- copyright protection for innovations in fashion
- joint authorship
- termination rights
- appropriation art
- digital sampling of sound recordings
- circumvention of technological protection measures
- the rights and privileges of libraries
- artificial intelligence (AI)
- Do you have a different idea? Send me an email and we'll talk about it!

Then select one of the four intellectual-property theories that were examined in this course:

- Fairness Theory
- Personality Theory
- Welfare Theory
- Cultural Theory

<u>Questions to address in your answer:</u>

What insight into how copyright law should address the issue you select might be derived from the theory you select?

In other words, how do you believe your chosen theory would impact / change your chosen dimension of copyright law as we understand it in the U.S. today?

How does your analysis illuminate the strengths and weaknesses of the theory?

INFO 4940 students: Your answer should be ~750 words.
INFO 5940 students: Your answer should be ~1,000 words.